

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:
SUMMONS

-----X
VALERIYA RESHETNIKOVA,

Plaintiff,

Plaintiff designates New York
County as the place of trial.

-against-

The Basis of Venue is:
Place of Occurrence

THE CITY OF NEW YORK, DETECTIVE ANTONIO
PAGAN AND POLICE OFFICERS "JOHN DOE #1-5"
(the name "John Doe" being fictitious as the true names are
presently unknown), individually and in their official capacity
as New York City Police Officers,

Plaintiff resides at:
2510 Hubbard Street
Brooklyn, NY 11235

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 10, 2017



ELLIE A. SILVERMAN, ESQ.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
VALERIYA RESHETNIKOVA
299 Broadway, 17th Floor
New York, NY 10007
212-233-6686
File No.: 14-3742

TO: **THE CITY OF NEW YORK**, Municipal Building, New York, NY 10007
DETECTIVE ANTONIO PAGAN, 1 Police Plaza Path, Room 1200, New York, NY
10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

-----X
VALERIYA RESHETNIKOVA,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE ANTONIO
PAGAN AND POLICE OFFICERS "JOHN DOE #1-5"
(the name "John Doe" being fictitious as the true names are
presently unknown), individually and in their official capacity
as New York City Police Officers,

Defendants.

-----X
Plaintiff, by his attorneys, **NOVO LAW FIRM, PC**, complaining of the Defendants **THE
CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN AND POLICE OFFICERS
JOHN DOE #1-5**, respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff **VALERIYA RESHETNIKOVA** was, and still is, an individual residing 2510
Hubbord Street, County of Kings, City of Brooklyn and State of New York.
2. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a
municipal corporation duly incorporated and existing under and by virtue of the laws of the
State of New York.
3. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a
municipal entity created and authorized under the laws of the State of New York. It is
authorized to maintain a police department, which acts as its agent in the area of law
enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW**

YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by New York City Police Department.

4. Defendants **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** were, and still are, at all times relevant herein, duly appointed and acting officers, servants, employees and agents of New York City Police Department a municipal agency of Defendant **THE CITY OF NEW YORK**.
5. Defendant **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** were, and still are, at all times relevant herein, a male New York City Police Officer, assigned to one of the precincts located within New York City.
6. On October 14, 2016, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiffs' demands for adjustment thereof was duly served on the Plaintiffs' behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
7. Upon information and belief and pursuant to General Municipal Law § 50(h), a hearing was requested to be scheduled to be held at the office of a designated agent. To date, the designated agent has failed to reschedule the 50-h hearing.

FACTS

8. Plaintiff **VALERIYA RESHETNIKOVA** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

9. On or about August 12, 2016, at approximately 5:30 P.M., Plaintiff **VALERIYA RESHETNIKOVA**, was a lawful citizen in the course of her employment at or near premises of the Holistic Center of New York located at or near 107 West 82nd Street, Suite 105, in the County of New York, City of City of New York and State of New York,
10. Upon information and belief, at aforementioned time and location Ms. Reshetnikova became a victim of entrapment and other police misconduct, police brutality, was falsely arrested, detained, falsely searched, became a victim of malicious and sadistic force.
11. While Plaintiff **VALERIYA RESHETNIKOVA** was lawfully in the course of her employment at the Holistic Center of New York at or near aforementioned location, she was approached by Defendants **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**, New York City Police Officers who, without reasonable suspicion, without probable cause and without any threat or reasonable belief of unlawful activity, proceeded unlawfully arrest and handcuff Plaintiff without any indication as to what she had done wrong and/or what, if any, crime(s) she had committed.
12. Upon information and belief, **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** ignored Plaintiff **VALERIYA RESHETNIKOVA**'s numerous pleas that she is claustrophobic and handcuffs may result in her having anxiety/panic attacks.
13. Plaintiff **VALERIYA RESHETNIKOVA** was subjected to searches by Defendants **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**.
14. Upon information and belief, at no time did Plaintiff **VALERIYA RESHETNIKOVA** resist or disobey any command given by Defendants **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**.

15. Upon information and belief, with deliberate indifference to her numerous pleas that she is claustrophobic which can result in panic/anxiety attacks claimant **VALERIYA RESHETNIKOVA** was placed into a patrol vehicle and left there for approximately thirty (30) minutes as Defendants **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** drove around the streets and made various arrests.
16. Upon information and belief, at all times throughout this process, Ms. Reshetnikova numerous pleadings for medical assistance in that she suffered from both claustrophobia and panic attacks were ignored or otherwise denied.
17. Upon information and belief, Defendants **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** ignored and/or otherwise denied plaintiff's numerous pleas for her extremely tight handcuffs to be loosened.
18. Upon information and belief, Plaintiff **VALERIYA RESHETNIKOVA** was then taken to the 20th Precinct where she was criminally processed and placed in a holding cell and remained there for approximately three (3) hours.
19. Upon information and belief, holding cell where Plaintiff **VALERIYA RESHETNIKOVA** was held, was infested and had unsanitary conditions.
20. Upon information and belief, while in Defendants' custody, Plaintiff **VALERIYA RESHETNIKOVA** requested medical attention several times.
21. Upon information and belief, while in the holding cell, Plaintiff complained of pain and injuries and pleaded to be given medical attention, but with deliberate indifference to her serious medical needs, Plaintiff was deprived of medical attention.
22. Upon information and belief, Plaintiff **VALERIYA RESHETNIKOVA** was not read her Miranda Rights

23. Upon information and belief, Plaintiff **VALERIYA RESHETNIKOVA** was not allowed to make a phone-call.
24. Upon information and belief, while in the Defendants' custody, Plaintiff **VALERIYA RESHETNIKOVA** made several complaints of pain that the handcuffs were too tight.
25. Upon information and belief, Defendants denied all requests to loosen or remove the handcuffs and/or shackles.
26. Upon information and belief, at no point did Plaintiff **VALERIYA RESHETNIKOVA** resist arrest or disobey the arresting officer's commands.
27. Upon information and belief, after spending several hours in the precinct holding cell, Plaintiff was given a desk appearance ticket and then released on her recognizance.
28. Plaintiff **VALERIYA RESHETNIKOVA** was maliciously prosecuted from the date of her arrest through subsequent court dates.
29. Upon information and belief, on or about July 21, 2017, Plaintiff **VALERIYA RESHETNIKOVA**'s criminal case was dismissed.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY THE CITY OF NEW YORK

30. Plaintiff **VALERIYA RESHETNIKOVA** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
31. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **DETECTIVE ANTONIO PAGAN** and **POLICE OFFICERS JOHN DOE #1-5**, had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

32. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department, and through Defendants **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**, had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendant's supervisors of the need to train, screen, supervise and discipline said Defendant. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
33. Defendant **THE CITY OF NEW YORK** acting through its police department, and through Defendants **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**, being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **THE CITY OF NEW YORK** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff **VALERIYA RESHETNIKOVA** and which are officially tolerated by Defendant **THE CITY OF NEW YORK**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.
34. As a result of the foregoing, Plaintiff **VALERIYA RESHETNIKOVA** was deprived of her

liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5.

35. Plaintiff **VALERIYA RESHETNIKOVA** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
36. By his conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff **VALERIYA RESHETNIKOVA** in failing, refusing and/or withholding his medically necessary medication, medical attention and/or other medical needs and in failing to protect her from the unjustified and unconstitutional treatment she received at the hands of Defendants **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**, acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.
37. As a result of the foregoing, Plaintiff **VALERIYA RESHETNIKOVA** was deprived of her liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
EXCESSIVE FORCE

38. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

39. Plaintiff was continuously subjected to multiple excessive unnecessary and unreasonable acts of physical force and to unnecessary, and to unreasonable and excessive terms and conditions of his detention, at the hands of defendants under the color of state law, in violation of her rights as guaranteed under the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 USC § 1983.
40. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
MALICIOUS ABUSE OF PROCESS

41. Plaintiff **VALERIYA RESHETNIKOVA** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
42. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** issued legal process to place Plaintiff **VALERIYA RESHETNIKOVA**, under arrest and subject her to prosecution.
43. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** arrested and participated in prosecuting Plaintiff **VALERIYA RESHETNIKOVA**, in order to obtain collateral objectives outside the legitimate ends of the legal process.
44. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** arrested and participated in prosecuting Plaintiff **VALERIYA RESHETNIKOVA** in order to obtain the collateral objective of intimidating

Plaintiff for their personal interest and further to prevent Plaintiff from disclosing the aforementioned evidence of NYPD misconduct and excessive force.

45. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** acted with intent to do harm to Plaintiff **VALERIYA RESHETNIKOVA** without excuse or justification.

46. As a result of the foregoing, Plaintiff **VALERIYA RESHETNIKOVA** was deprived of her liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
DERELICTION OF DUTY, DELIBERATE INDIFFERENCE
and FAILURE TO INTERCEDE

47. Plaintiff **VALERIYA RESHETNIKOVA** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

48. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** were under a duty of safeguarding the public and ensuring the appropriate execution of the New York Police Department's role. Plaintiff **VALERIYA RESHETNIKOVA** duly relied on Defendants' fulfillment of their policing duties.

49. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** had an affirmative duty to intercede when Plaintiff **VALERIYA RESHETNIKOVA**'s constitutional rights were being violated in Defendants' presence.

50. At the time of the incident, Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**, were observing and aware of the wrongful acts against Plaintiff **VALERIYA RESHETNIKOVA**.
51. At the time of the incident, Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**, neglected to intervene on Plaintiff **VALERIYA RESHETNIKOVA**'s behalf in dereliction of their duty to Plaintiff and in depraved indifference to Plaintiff's well-being.
52. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** violated Plaintiff **VALERIYA RESHETNIKOVA**'s constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
53. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** had an affirmative duty to intercede when Plaintiff **VALERIYA RESHETNIKOVA** constitutional rights were being violated in Defendants' presence by falsifying evidence of probable cause to arrest and prosecute Plaintiff.
54. As a result of the foregoing, Plaintiff **VALERIYA RESHETNIKOVA** was deprived of her liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

55. Plaintiff **VALERIYA RESHETNIKOVA** repeats and reiterates the allegations set forth in

the foregoing paragraphs with the same force and effect as though fully stated herein.

56. By the actions described above, Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**, caused Plaintiff **VALERIYA RESHETNIKOVA** to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.
57. As a result of the foregoing, Plaintiff **VALERIYA RESHETNIKOVA** was deprived of her liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR AN SEVENTH CAUSE OF ACTION
MALICIOUS PROSECUTION VIA NEW YORK STATE LAW AND SECTION 1983

58. Plaintiff repeats and reiterates the allegation set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
59. By the actions described above, Defendants **THE CITY OF NEW YORK** (through respondeat superior), **DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**, under color of state law, maliciously prosecuted Plaintiff without probable cause, illegally, without any proper claims and without any right or authority to do so. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his rights as guaranteed by 42 USC §1983 and by the laws of the constitution of the State of New York.

60. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**, arrested and issued legal process in order to obtain collateral objectives outside the legitimate ends of the legal process.
61. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged or injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
VIOLATION OF SUBSTANTIVE DUE PROCESS

62. Plaintiff **VALERIYA RESHETNIKOVA** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
63. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff **VALERIYA RESHETNIKOVA** that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.
64. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5**, individually and collectively are liable for abuses against Plaintiff **VALERIYA RESHETNIKOVA** that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.
65. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** individually and collectively are liable for abuses against Plaintiff **VALERIYA RESHETNIKOVA** that shock the conscience in violation of New York law, rules and regulations.

66. As a result of the foregoing, Plaintiff **VALERIYA RESHETNIKOVA** was deprived of her liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A NINETH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL HARM

67. As a result of the aforementioned incident Plaintiff has sought medical attention and has been diagnosed with Post Traumatic Stress Disorder.
68. Plaintiff **VALERIYA RESHETNIKOVA** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
69. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** knowingly, unreasonably and maliciously sought to disturb Plaintiff **VALERIYA RESHETNIKOVA** by their individual and collective outrageous conduct.
70. This conduct includes, without being limited to, assaulting and battering, Plaintiff **VALERIYA RESHETNIKOVA** while she was bound by handcuffs in their custody; unreasonably detaining her; handcuffing her despite the fact that she told them that she is claustrophobic, inflicting her panic/anxiety attacks, keeping her in infested unsanitary holding cell, depriving her of food, water and proper medical care and subjecting her to multiple unreasonable searches and other intimidation tactics and violated her statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.

71. Defendants **THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE #1-5** have caused Plaintiff **VALERIYA RESHETNIKOVA** humiliation, anxiety, fear, sleeplessness and severe distress.

72. As a result of the foregoing, Plaintiff **VALERIYA RESHETNIKOVA** was deprived of her liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

WHEREFORE, Plaintiff demand judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
August 10, 2017

Yours, etc.



ELLIE A. SILVERMAN, ESQ.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
VALERIYA RESHETNIKOVA
299 Broadway, 17th Floor
New York, NY 10007
212-233-6686

ATTORNEY'S VERIFICATION

ELLIE A. SILVERMAN, an attorney duly admitted to practice before the Courts of the State of New York affirms the following to be true under the penalties of perjury:

I am an attorney at NOVO LAW FIRM, PC, attorneys of record for Plaintiff, VALERIYA RESHETNIKOVA, in the action within. I have read the annexed **Verified Complaint** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
August 10, 2017


ELLIE A. SILVERMAN, ESQ.

Index No.: _____/2015

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

VALERIYA RESHETNIKOVA,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE ANTONIO PAGAN and POLICE OFFICERS JOHN DOE
#1-5 (the name "John" being fictitious as the true names are presently unknown), individually and in their
official capacity as New York City Police Officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

NOVO LAW FIRM, P.C.
Attorneys for Plaintiff
VALERIYA RESHETNIKOVA
299 Broadway, 17th Floor
New York, New York 10007
(212) 233-6686
Fax (212) 233-6687

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: August 10, 2017

Ellie A. Silverman, Esq.

TO:

THE CITY OF NEW YORK, Municipal Building, 1 Centre Street, New York, New York 10007
DETECTIVE ANTONIO PAGAN, 1 Police Plaza Path, Room 1200, New York, NY 10007